



DEPARTMENT OF THE NAVY
NAVAL FACILITIES ENGINEERING SYSTEMS COMMAND ATLANTIC
6506 HAMPTON BOULEVARD
NORFOLK VA 23508-1278

13 February 2025
J&A NO. 25-02

**JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION**

1. Contracting Activity

Department of Navy (DON), Naval Facilities Engineering Systems Command (NAVFAC), Atlantic Norfolk, Virginia.

2. Description of the Action Being Approved

The action being approved under a sole source basis is issuance of a contract modification to increase capacity under Contract N62470-17-D-5004, Indefinite Delivery/Indefinite Quantity (IDIQ) Contract for Architect-Engineer (A-E) Services related to Design Project (Administrative Type Buildings) from \$24.5 Million to \$25.7 Million, an increase of \$1.2 Million. This contract was awarded on 03 November 2016 to Clark Nexsen CH2M-Hill Norfolk with a base year and four one-year options, ending 02 November 2021. Closeout of existing task orders continues. The two task orders remaining active are the two listed herein. All other Task Orders are in a state of closeout or are pending closeout and no future capacity is anticipated or required.

3. Description of Services:

The subject contract provides for multi-discipline A-E services for design projects located throughout the entire Naval Facilities Engineering Command Area of Responsibility. Architect and Engineering Services that are required under this contract include DD Form 1391 documentation, Design-Build RFPs, plans, specifications, cost estimates, related studies, field investigations, surveying and mapping, tests, evaluations, consultations, program management, conceptual designs, soil borings, hazardous materials identification, energy computation, life safety code studies, interior space comprehensive planning/design, value engineering, other associated engineering services, shop drawing review, as-built drawing preparation, Operation and Maintenance Support Information (OMSI), Commissioning, and construction inspection and engineering consultation services during construction. The design projects performed under this contract are for administration buildings, religious facilities, dining facilities, recreational facilities, security buildings, child development centers, bachelor quarters and related facilities.

A detailed estimate of the current requirements are as follows:

██████ Task Order 0002 P811 Port Operations Facilities, Rota Spain AE Services. This TO supports full design-bid-build plans and specifications for the subject Military Construction (MILCON) project and was awarded 22 December 2016 ██████.

There have been ten (10) modifications issued to date.

P00001 Incorporate Concept Design and Scope changes

P00002 Award Pre-Priced Option FSDDA ██████

P00003 Award Pre-Priced Option for Design Commissioning and Hazard Analysis
P00004 Incorporate Comprehensive Interior Design and FF&E
P00005 ADMN to correct Lines of Accounting
P00006 Hazmat Analysis and Drawings ISO P811
P00007 POP Extension from 01/31/2020 to 09/30/2020
P00008 POP Extension from 09/30/2020 to 04/30/2024
P00009 Award Pre-Priced Option for PCAS [REDACTED]
P00010 POP Extension from 04/30/2024 to 06/25/2025

The Option for Post-Construction Award Services (PCAS) was issued via Mod P00009 on 3 December 2021 [REDACTED]. The construction contract was awarded under separate action and is approximately 80% complete as of January 2025 with an estimated Contract Completion Date of 30 December 2025. The remaining services on this TO support ongoing construction design clarifications, requests for information, submittal review, shop-drawing review, record drawings, field consultation and consultations with the Designer of Record for the design package developed under this Task Order.

The original design package completed on 27 March 2020 and the project was placed on hold due to the 2808 national emergency declaration. The project was re-authorized in 2021 and solicitation of the construction contract commenced with award of the construction contract occurring on 30 August 2021. After award, the construction was plagued by unforeseen unexploded ordinance and other unforeseen challenges that delayed the construction progress, including global impacts for products and services due to the COVID pandemic and labor strikes in Spain for the transportation and other supply chain industries. Due to the time that has lapsed since design completion and physical construction, close coordination with the Designer of Record is required for completion of the facility. The construction is now in a state of steadfast construction; however, the design package requires minor design changes due to product and material unavailability from the change in the market conditions and infrastructure changes in order to accommodate current conditions of the project site, including unforeseen site conditions that require the telecom connection route to be changed.

P811 Port Operations Facilities replaces aging infrastructure at Naval Station Rota. The current facility was built in 1960 and continues to have severe maintenance issues. The existing facility operates inefficiently and lacks direct line of sight to the Piers, posing safety hazards to the fleet. The existing facility is plagued with corrosion issues due age and proximity [REDACTED]

[REDACTED] The new facility increases efficiency of Port Operations and intermodal management of NATO and Spanish coordination of increased port traffic in addition to resolving the current safety hazards. The new facility also provides [REDACTED] administrative spaces to consolidate inefficient operations [REDACTED].

[REDACTED] Task Order N6247019F4070 P130, Communications Facility, Sigonella, Italy - AE Services. This TO supports Host Nation AE Services to an in-house design-bid-build design and specification package for the subject MILCON project.

There have been two (2) modifications issued to date:

P00001 Award Pre-Priced Options for PCAS and Commissioning, [REDACTED]
P00002 AE Services for RF Shielding, [REDACTED]

The Option for PCAS was issued via modification P00001 on 18 December 2020 [REDACTED]. The construction contract was awarded under a separate action on 29 September 2020 and is approximately 10% complete with an estimated Contract Completion Date of 24 December 2026. The services on this Task Order support ongoing construction design clarifications, requests for information, submittal review, shop-drawing review, record drawings, commissioning, field consultation and consultations for host nation compliance in support of the Designer of Record (Government) for the facility.

The original design package was completed on 02 July 2020. After award, the construction was plagued by prolonged unexploded ordinance surveys to clear the site and achieve regional authority to commence construction. Other unforeseen challenges that delayed the construction progress include foundation redesign due to complications with soil stability, global impacts for products and services due to the COVID pandemic, and other supply chain industry delays. Due to the time that has lapsed since design completion and physical construction, close coordination with the Designer of Record for Host Nation compliance is required for completion of the facility. The construction is now in a state of steadfast construction; however, the design package requires minor design changes due to product and material unavailability from the change in the market conditions and infrastructure changes in order to accommodate current conditions of the project site.

P130 provides a Communication Stations for Naval Air Station Sigonella, Italy. [REDACTED]

[REDACTED] The existing facility was built in 1966 and fails to meet current communication standards while also being plagued with maintenance and service issues, to include sewer and potable [REDACTED]

[REDACTED] The new facility will consolidate various operational service members to support the mission in a consolidated location. [REDACTED]

Total Amount of Additional Capacity - \$1,200,000.00

4. Statutory Authority Permitting Other Than Full and Open Competition.

The statutory authority permitting other than full and open competition is 10 U.S.C. 3204(a)(1), as implemented by Federal Acquisition Regulation (FAR) 6.302-1, Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements.

5. Rationale Justifying use of Cited Statutory Authority

Use of the authority cited above is deemed appropriate due to the highly specialized services required for this added work. The Government must increase capacity of this contract to avoid unacceptable delays in design and construction of mission critical projects and to maintain the contractual responsibilities of the Designer of Record for the designs and specifications and Host Nation compliance of these MILCON projects. The existing contract is a result of full and open A&E competition and provides the most highly qualified Offeror as determined by the award of the contract. Failure to modify the contract would result

in substantial duplication of cost to the Government that is not expected to be recovered through competition and unacceptable delays in fulfilling the agency's requirements (FAR 6.302-1(a)(iii)). The nature of this support is necessary to ensure the Navy's infrastructure supports mission readiness, the safety of the Warfighter, and ultimately the warfighters' ability to perform their mission.

Clark Nexsen-CH2M-Hill Norfolk is the only responsible source that is currently in a position to properly perform the work without a lapse in services as the Designer of Record. The agency's need for these services is such that only the existing contractor can perform the work in a way that limits duplicative work, resulting in extensive delays and additional costs to the Government. The Designer of Record must adhere to professional responsibilities of compliance and ownership of the deliverable scope of services, including liability for correction of any design deficiencies, omissions, or errors; these responsibilities and liabilities are not transferrable.

Utilizing a different A-E firm to complete these projects would require the need to review the entire design document to learn the fine details of the design and then perform independent calculations to confirm design quality, prior to starting the task at hand. This is a significant duplication of effort that the government has already procured and could not be recovered through competition. Additionally, there would likely be additional costs based on the need for the different firm to assume the legal liability and responsibility for the design quality. The Government would be harmed financially and in culpability of assuming quality of the existing design packages by soliciting transfer of these responsibilities onto another legal entity. Furthermore, the time involved in completing these tasks would result in an unacceptable delay to the current constructions, [REDACTED]

Accordingly, the current Designer of Record, Clark Nexsen CH2M-Hill Norfolk, is the only responsible source to complete the project requirements that will avoid duplication of costs that would not be recovered through competition and avoid unacceptable delay to the current schedule that is in progress.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practical:

The proposed contract was not synopsisized on the SAM website as a waiver was obtained in accordance with DFARS PGI 206.302-1(d) Limitations. A contract search determined the government does not have any other active contracts with this Joint Venture in order to provide continued service support to the active construction projects. The IDIQ Task Orders were also reviewed to ensure planned and other unexpended capacity reserves were not available. No additional market research was conducted because it is not practicable, for the reasons discussed in paragraph 5 above, for any company other than Clark-Nexsen-CH2M-Hill Norfolk to provide the required services.

7. Determination of Fair and Reasonable Cost:

The Contracting Officer has determined the anticipated cost to the Government of the supplies/services covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition:

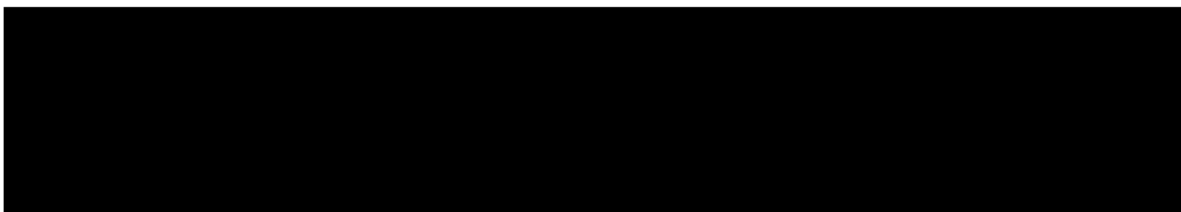
For the reasons set forth in Paragraph 5, NAVSYSCOM has no plans at this time to compete future contracts for the types of supplies/services covered by this document. If another potential source emerges, NAVSYSCOM will assess whether competition for future requirements is feasible.

Certifications and Approval

TECHNICAL/REQUIREMENTS CERTIFICATION

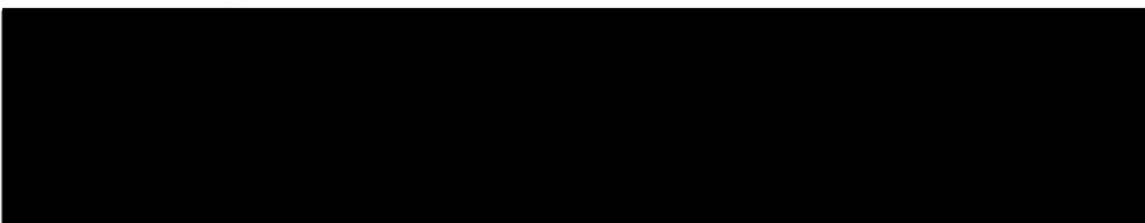
I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief.

Technical Cognizance:

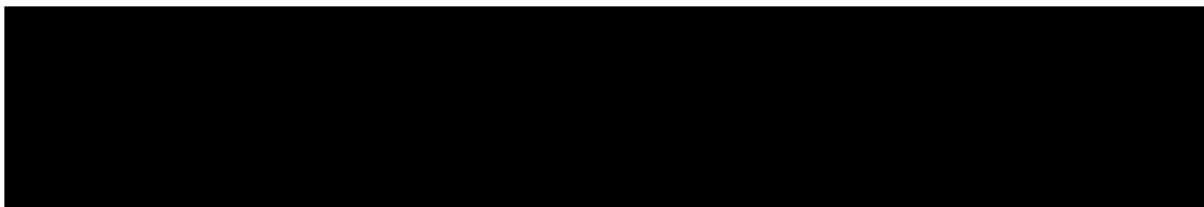


Legal Sufficiency Review:

I have determined this justification is legally sufficient.



I certify that this justification is accurate and complete to the best of my knowledge and belief.



ECHELON III COMMANDER APPROVAL

Upon the basis of the above justification, I hereby approve, as Echelon III Commander, the solicitation of the proposed procurement(s) described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 3204(a)(1), Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements.

